



MEMORANDUM OF UNDERSTANDING

Between CSIR-Institute of Himalayan Bioresource Technology (CSIR-IHBT) and HIMWAL Society

BETWEEN

CSIR-Institute of Himalayan Bioresource Technology (CSIR-IHBT)

Palampur (H.P.), India

And

**Himalayan Women, Awareness & Livelihood (HIMWAL) Society, Dehradun
(Uttarakhand), India**

CSIR-Institute of Himalayan Bioresource Technology, Post Bag No. 6, Palampur – 176 061 (H.P.) India (hereinafter known as “CSIR-IHBT”/Partner One) a constituent establishment of Council of Scientific and Industrial Research, Rafi Marg, a society registered under its Societies Registration Act XXI 1860 and having its registered office at Anusandhan Bhawan, 2, Rafi Marg, New Delhi (hereinafter called CSIR) which expression shall where the context admits include its the IHBT (hereinafter called the CSIR-IHBT) which is a constituent Institute of CSIR (Successors and permitted assigns) of the ONE PART.

AND

Himalayan Women, Awareness & Livelihood (HIMWAL) Society, Dehradun, India (herein after referred to as “HIMWAL”/Partner Two), having its registered office at THDC Colony, Tea Estate, Banjarawala, Dehradun-248001, (Uttarakhand), India which expression unless repugnant to the context or the meaning thereof shall include its permitted assigns, subsidiaries and successors of the OTHER PART.

Whereas both the above mentioned partners having signed the Memorandum of Understanding (hereinafter MoU) on 28.05.2026, which will lay the foundation for R&D cooperation in the area of Seabuckthorn, Medicinal and Aromatic Plants, Floriculture, value addition, food and nutraceuticals etc. AND/or any other area mutually decided by both the parties. This MoU aims to establish the framework, guidelines, and structure for PARTNER TWO to utilize IHBT's technologies and products in their farmer support initiatives within Himachal Pradesh.

NOW THIS INDENTURE WITNESSETH AS UNDER:

In consideration of the above premises and agreement, the Partners to the Memorandum of Understanding hereby now agree as follows:

1. Areas of Cooperation

Partner One, CSIR-IHBT agrees to make the technologies and the knowledgebase available with it as per the interest shown by Partner Two, PARTNER TWO for R&D collaborations on Seabuckthorn, Medicinal and Aromatic Plants, Floriculture, Millets, value addition, food and nutraceuticals etc. as per extant CSIR guidelines for further dissemination and commercialization purpose. It is expressly understood and agreed upon between the partners to the MoU that the responsibilities, obligations and fee for each of the product/technology to be transferred or service to be provided shall be agreed upon separately by the partners with mutual understanding in writing and no financial liability or claim shall arise out of this MoU from PARTNER TWO. The partners may also undertake joint projects, with the funding of national and



international agencies in the areas of mutual interest. The institutions as per their extant guidelines shall seek to promote or facilitate:

- a. Collaboration in research & development programs, capacity building, technical services and consultancy activities in mutually decided areas.
- b. Exchange of academic and research material, and publications/IPs (exists in public domain).
- c. Supply of quality planting material of MAPs to the farmer groups or SHG on payment basis/FOC under CSIR-Mission projects depending upon the provision and availability.
- d. Establishment of linkages with industry (aroma/herbal).

2. IP Issues

The ownership of Intellectual Property Rights (IPRs) for CSIR-IHBT technologies and knowledgebase (registered or unregistered) will be owned by CSIR-IHBT, however, the technologies/product/process generated in collaboration mode with PARTNER TWO, the ownership will be decided with mutual understanding in respect of each project/assignment by way of separate Agreement.

The use of CSIR-IHBT technologies and the knowledgebase having IPR registered with CSIR may encompass assigning or licensing of intellectual property of CSIR-IHBT. The assignment and licensing of the intellectual property of CSIR-IHBT would be as per separate agreements.

Further, any joint project undertaken by CSIR-IHBT and PARTNER TWO, funded by national and international agencies, would be governed by separate agreement entered between CSIR-IHBT, PARTNER TWO and the funding agencies, detailing issues such as:

- Generation of new IP, its ownership, assignment and licensing;
- Licensing (exclusive or non-exclusive) of existing intellectual property of CSIR-IHBT; and
- Distribution of royalties between the parties to the MoU and the national and international funding agencies.

3. Confidentiality

Both parties agree and undertake to keep confidential, at all times, any information and/or data that may be exchanged, acquired and/or shared in connection with the area of cooperation unless otherwise the same information already exists in the public domain and on the termination of this MoU, receiving party shall return all the information's/documents of the other disclosing party. Provided, however, nothing contained herein shall affect the ability of both the parties to make disclosure to any governmental authority or any other person under the provisions of any applicable law, provided that the Receiving Party, to the extent possible, has first given prior written notice to the Disclosing Party and made reasonable efforts to protect the Confidential Information in connection with such disclosure. The obligations of confidentiality shall come into effect upon the signing of this MoU and shall survive the termination/expiration of this MoU.

4. Further Acts & Assurance

Both partners agree to execute and deliver all such further instruments and to perform all such further acts as shall be necessary and required to carry out the provisions of this MoU and to consummate contemplated hereby.



5. Amendment to the MoU

The obligations of CSIR-IHBT and PARTNER TWO have been outlined in this MoU. However, during the operation of the MoU circumstances may arise which may call for alterations or modifications of this MoU. These alterations will be mutually discussed and agreed upon in writing. No amendment or change hereof or addition hereto shall be effective or binding on either of the partners hereto unless set forth in writing and executed by the respective duly authorized representatives of each of the partners hereto.

6. Validity & Termination

This MoU shall come into effect upon signature of both the partners on the date set forth below and will be in force for five years. It may be extended further in its present form or with modifications as may be agreed upon through mutual consent. This MoU can be terminated at any time through mutual consent on three months' notice in writing from either side.

7. Force Majeure

Neither CSIR-IHBT nor PARTNER TWO shall be liable to each other for failing or delay in the performance of any of its obligations under this MoU to the extent such failure or delay is caused by riots, civil commotions, war or hostilities between nations, government laws, orders or regulations, embargoes, actions by the government or any agency thereof, acts of God, storms, fires, accidents, strikes, sabotages, explosions or other similar or different contingencies beyond the reasonable control of the respective partners.

8. Matters Not Provided In

If any doubt arises as to the interpretation of provisions of this MoU or as to matters not provided therein, partners to this MoU shall consult with each other for each instance and resolve such doubts in good faith.

9. Arbitration

- 9.1** In the event of any question/dispute/difference arising under the agreement or in connection herewith (except as to matters the decision of which is specially provided under this agreement) the same shall be referred to the Delhi International Arbitration Centre for appointment of an Arbitrator to adjudicate the dispute.
- 9.2** The award of the Arbitrator shall be final and binding on the parties. The Arbitrator may give interim award(s) and/or directions, as may be required.
- 9.3** Subject to the aforesaid provision, the Arbitration and Conciliation Act, 1996 and the rules made thereunder and any modification thereof from time to time being in force shall be deemed to apply to the arbitration proceedings under this clause.

10.

Both Parties understand that the other Party may currently or in the future be developing information internally or receiving information from other third parties that may be similar; accordingly, nothing in this Agreement shall be construed as a representation or inference that the Parties will not develop products or services, or have products or services developed, independent of and that compete with the products or technologies.



IN WITNESS WHEREOF, the Partners to this MoU have through their authorized representatives executed these presents and affixed Seals of their companies on the day, month and year mentioned above.

For and on behalf of CSIR-IHBT	For and on behalf of PARTNER TWO
<i>Signed by:</i> (Dr. Sukhjinder Singh) Pr. Scientist and Coordinator, BDMU CSIR-IHBT, Palampur – 176 061 DATE: 28.05.2026	<i>Signed by:</i> (Dr. Deepika Dimri) Scientist & Secretary, HIMWAL Society Dehradun-248001 (Uttarakhand) DATE: 28.05.2026
Witness: (Dr. Rakesh Kumar) Chief Scientist, Agrotechnology Division CSIR-IHBT, Palampur – 176 061	Witness: (Dr. Nand Kishore Hatwal) President, HIMWAL Society Dehradun-248001 (Uttarakhand)
(Dr. Vidyshankar Srivastan) Pr. Scientist, Dietetics and Nutrition Division CSIR-IHBT, Palampur – 176 061	(Ms. Shalini Singh) Coordinator, HIMWAL Society Dehradun-248001 (Uttarakhand)
(Dr. Ramesh) Sr. Scientist, Agrotechnology Division CSIR-IHBT, Palampur – 176 061	(Mr. M.P. Dimri) Member, HIMWAL Society Dehradun-248001 (Uttarakhand)